

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:

Purchased:

-----X  
ADAM LAMBERT,

Plaintiff,

Plaintiff designates

Bronx County as the place of trial

-against-

The basis of the venue is where the  
tort arose

CITY OF NEW YORK, Individually and in their official  
capacities as New York City Police Officers, JONATHON  
MENDES, EVAN HODOS, CHRISTOPHER SKULSKY,  
and JOHN or JANE DOE 1-10,

**SUMMONS**

Defendants.  
-----X

**TO THE ABOVE-NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED**, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York  
June 28, 2019



**SIM & DEPAOLA, LLP**

By: Samuel DePaola, Esq.

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TO: Corporation Counsel of  
The City of New York  
100 Church Street  
New York, NY 10007

PO Jonathon Mendes  
42<sup>nd</sup> Precinct  
Shield No. 1432, Tax ID 961944  
830 Washington Ave  
Bronx, NY 10451

Sgt. Evan Hodos  
42<sup>nd</sup> Precinct  
Shield No. 4120, Tax ID 944081  
830 Washington Ave  
Bronx, NY 10451

Det Christopher Skulsky  
Shield No. 4120, Tax ID 910568  
One Police Plaza  
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
ADAM LAMBERT,

Plaintiff,

**VERIFIED COMPLAINT**

-against-

CITY OF NEW YORK, Individually and in their official  
capacities as New York City Police Officers, JONATHON  
MENDES, EVAN HODOS, CHRISTOPHER SKULSKY,  
and JOHN or JANE DOE 1-10,

Index No.:

Defendants.  
-----X

Plaintiff, ADAM LAMBERT, by his attorneys, SIM & DEPAOLA, LLP, for his  
complaint against the above Defendants, alleges as follows:

1. The claims arise from an August 3, 2017 incident, in which defendants, acting under color of state law, unlawfully arrested and detained plaintiff, Mr. Adam Lambert. Mr. Lambert was subsequently prosecuted and charged with one (1) count of Aggravated Unlicensed Operation of a Motor Vehicle, a misdemeanor, and one (1) count of Unlicensed Operation, a traffic infraction. As a result, Mr. Lambert was deprived of his liberty and suffered physical and emotional injuries. Due solely to Mr. Lambert's false arrest and subsequent malicious prosecution, he was wrongfully deprived of his liberty for cumulative duration of approximately one-hundred-and-sixty-six (166) days. The criminal prosecution against Mr. Lambert was favorably terminated, when he was acquitted of all charges following a trial on May 1, 2018.

**PARTIES**

2. Plaintiff, ADAM LAMBERT ("Mr. Lambert") resides at 3603 3<sup>rd</sup> Ave, Bronx, NY 10456

3. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
4. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
5. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
6. Defendant, Jonathon Mendes ("Mendes"), of the 42<sup>nd</sup> Precinct was, at all times here relevant, a police officer or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Mendes was, at all times relevant herein, a Police Officer, under Shield No. 1432, and Tax ID No. 961944. Defendant Mendes is being sued in his individual and official capacities.
7. Defendant, Evan Hodos ("Hodos"), of the 42<sup>nd</sup> Precinct was, at all times here relevant, a police officer, sergeant, detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Hodos was, at all times relevant herein, a police officer or police seargent, under Shield No. 4120, and Tax ID No. 944081. Defendant Hodos is being sued in his individual and official capacities.

8. Defendant, Christopher Skulsky ("Skulsky"), of the 42<sup>nd</sup> Precinct was, at all times here relevant, a detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Skulsky was, at all times relevant herein, a police officer or detective, under Tax ID No. 910568. Defendant Skulsky is being sued in his individual and official capacities.
9. At all times relevant Defendants John or Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants John or Jane Doe 1-10, but such knowledge is believed to be in possession of the defendants.
10. At all times relevant herein, Defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York and/or the NYPD. Defendants John or Jane Doe 1-10 are being sued in their individual and official capacities.
11. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
12. Plaintiff has timely filed a notice of claim regarding the subject incident with the New York City Office of the Comptroller.
13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
14. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
15. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On August 3, 2017, between the hours of 7:00 p.m. and 10:30 p.m., Mr. Lambert was in the vicinity of Gun Hill Road and Decatur Ave, County of Bronx, State of New York.
17. On said date, time and location, Mr. Lambert was a passenger in the back seat of a vehicle being driven his friend, Tiffany, and with another friend, believed to Richardson Ferguson, in the front passenger seat.
18. Defendants, including Mendes, Hodos, and Skulsky, performed an illegal stop of the vehicle Mr. Lambert was a passenger in without probable cause or reasonable suspicion to do so, as neither the driver or passengers had not committed any crimes, violations of the law, traffic infractions or other offenses.
19. Subsequent to said traffic stop, defendants, including Mendes, Skulsky, Hodos, and John or Jane 1-10, approached the vehicle and Mr. Lambert with their guns drawn.
20. Defendants, including Mendes, Skulsky and Hodos, illegally searched and seized Mr. Lambert even though there was no probable cause to do so, as there was no evidence that any occupants of the stopped vehicle had, or were presently, engaged in criminal or other illicit activity.
21. Defendants, Mendes, Hodos, and Skulsky, then proceeded to open the rear passenger seat where Mr. Lambert was seated without consent or justification for doing so and forcibly remove Mr. Lambert from the vehicle.
22. Defendants, Mendes, Hodos, and Skulsky, then slammed Mr. Lambert to the ground, causing him to endure substantial pain and sustain significant physical injuries.
23. Defendants, including Mendes, Hodos, and Skulsky, then conducted an illegal search of the stopped vehicle and of each occupant, including Mr. Lambert.

24. Said searches yielded nothing of any criminally probative value.
25. Defendant Skulsky and Mendes then applied metal handcuffs to Mr. Lambert's hands and wrists in an excessively tight fashion, causing Mr. Lambert to suffer substantial pain and injury.
26. Defendants, Mendes, Hodos, and Skulsky, then transported Mr. Lambert to an NYPD precinct, where he was criminally processed.
27. At the precinct, Defendants, Mendes, Hodos, and Skulsky, performed, authorized or directed an illegal strip-search and cavity inspection of Mr. Lambert's person, despite the complete absence of any indicia that Mr. Lambert had secreted contraband or any other valid reason to conduct said strip-search.
28. Defendant Skulsky signed a supporting deposition (or corroborating affidavit) falsely swearing and alleging that he observed Mr. Lambert operating the stopped vehicle.
29. Defendant Mendes was Mr. Lambert's arresting officer and signed the criminal court complaint, swearing and attesting the observations of defendant Skulsky, despite defendant Mendes being fully aware that said observations were complete fabrications, that Mr. Lambert was innocent of the crimes alleged within the complaint, and there existed no probable cause to arrest him.
30. Defendant Hodos was supervising sergeant assigned to Mr. Lambert's arrest and directed, approved or authorized Mr. Lambert's arrest, despite being fully aware that Mr. Lambert had not committed any crimes or violations of the law and that there was no probable cause to arrest him.
31. Mr. Lambert was never in the driver's seat of the stopped vehicle, at any point in time.

32. As a result of defendants' knowingly and intentionally providing false statements and allegations, Mr. Lambert was falsely arrested under docket number 2017BX030949.
33. Defendants, Mendes, Hodos, and Skulsky, were fully aware that Mr. Lambert was never operating the subject vehicle, but knowingly and intentionally chose to claim otherwise and forward those false claims to the District Attorney's Office to justify and excuse an otherwise invalid arrest.
34. Mr. Lambert had multiple assaults and batteries committed to his person by defendants, including, but not limited to being placed in handcuffs too tightly, violently yanked from the stopped vehicle and being slammed to the ground.
35. Defendants, including Mendes, Hodos, and Skulsky, intentionally provided said false information to the Bronx County District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Lambert, namely that Mr. Lambert was operating the subject vehicle with a suspended driver's license.
36. At no point did the Defendants, including Mendes, Hodos, and Skulsky, ever observe Mr. Lambert commit any crime or offense.
37. At no point were the defendants, including Mendes, Hodos, and Skulsky, ever told by any witnesses that Mr. Mendes committed any crime or violation of the law.
38. The defendants, including Mendes, Hodos, and Skulsky, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Lambert, he was merely a passenger in a vehicle that was illegally pulled over.
39. Defendants, including Mendes, Hodos, and Skulsky, never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that Plaintiff was guilty of any



crime, as they each were fully aware that Mr. Lambert was not the driver of the subject vehicle.

40. While Plaintiff was unlawfully detained, Defendants, including Mendes, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Aggravated Unlicensed Operation of a Motor Vehicle and other related charges.
41. Defendants, including Mendes, Hodos, and Skulsky, suppressed evidence and engaged in conduct undertaken in bad faith, namely the fabrications of the false accounts placing Mr. Lambert in the driver's seat.
42. Defendants, Mendes, Hodos, and Skulsky, were that Mr. Lambert was on parole at the time of his unlawful arrest and were also aware that the conditions of his parole would be violated if he was arrested for any reason.
43. Defendants, Mendes, Hodos, and Skulsky, therefore, proceeded to conspire to fabricate the false account that Mr. Lambert was operating the subject vehicle with a suspended license for the purpose of violating his parole conditions and incarcerating him.
44. Due solely to defendants,' Mendes,' Hodos,' and Skulsky's, nefarious and deplorable actions, Mr. Lambert was deemed to have violated the conditions of his parole and was wrongfully deprived of his liberty for an additional period of approximately five (5) months, beginning on, or about, August 26, 2017.
45. During all of the events described, the Defendants, Mendes, Hodos, and Skulsky, acted maliciously and with intent to injure Plaintiff.

46. At all times relevant hereto, Defendants, including Mendes, Hodos, and Skulsky, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
47. At all times relevant hereto, Defendants, including Mendes, Hodos, and Skulsky, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.
48. On, or about, May 1, 2018, a trial was conducted as to the specious criminal charges levied against Mr. Lambert.
49. Defendants, Mendes, Hodos, and/or Skulsky, testified during the trial and deliberately and knowingly offered false accounts regarding the events and occurrences forming the basis for Mr. Lambert's arrest and prosecution, namely that each defendant observed Mr. Lambert to be operating the subject vehicle with a suspended license.
50. Mr. Lambert was thereafter vindicated, when he was acquitted of all criminal charges, representing a favorable termination of his criminal proceedings.
51. Defendant City has engaged in a policy, custom, or pattern and practice of stopping vehicles occupied by members of protected classes, especially African- Americans, without probable cause or reasonable suspicion to do so and then using excessive force in the process of unlawfully arresting said individuals.
52. Defendant City has also engaged in a policy, custom, or pattern and practice of concealing their unlawful arrests by fabricating false accounts that African- American males were observed committing criminal acts, when no such acts were ever committed.

53. Mr. Lambert asserts that the aforementioned unlawful acts committed by defendants are representative of a pervasive policy, custom or pattern and practice within the City of New York and the NYPD, namely the practice of falsely arresting African- American males on parole, so that they will be reincarcerated.
54. Mr. Lambert asserts that defendants, including Mendes, Hodos, and Skulsky, falsely arrested, assaulted, battered and maliciously prosecuted him, due solely to their racial discriminatory prejudices against African- Americans, their desire to meet an arrest quota and to benefit from increased overtime compensation.
55. Mr. Lambert further asserts that Defendants, including Mendes, Hodos, and Skulsky, acted in such a sadistic and reprehensible manner, due to their assumption that defendants' version of events would undoubtedly and unduly be credited over Mr. Lambert's, solely because Mr. Lambert is a young black male and on parole.
56. Defendants, including Mendes, Hodos, and Skulsky, arrested, assaulted, battered and maliciously prosecuted Plaintiff, not because of any probable cause to believe Plaintiff had committed any crimes, violations of the law or caused defendants to fear for their safety, but because Plaintiff is a young, African- American male.
57. Defendants, including Mendes, Hodos, and Skulsky, discriminated against Plaintiff by arresting, assaulting, battering, and maliciously prosecuted Plaintiff, solely due to defendants' perception or consideration of Plaintiff's race, ethnicity, national origin, immigration status, religion, gender or age.
58. Defendants, including Mendes, Hodos, and Skulsky, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the unlawful stop, searches, assaults, batteries, seizure, arrest, and malicious prosecution against Plaintiff.

59. Defendants, including Mendes, Hodos, and Skulsky, possessed no valid reason to stop the subject vehicle or forcibly remove Mr. Lambert from said vehicle, which gives rise to the strong inference that the unlawful acts committed by Defendants, including Mendes, Hodos, and Skulsky, against Plaintiff, were discriminatorily motivated and enacted upon.
60. Defendants, including Mendes, Hodos, and Skulsky, subjected plaintiff to disparate treatment compared to other individuals similarly situated, because defendants failed to stop, question, arrest or maliciously prosecute the occupants of other vehicles who were not members of a protected class and who were traveling at the same time and on the same roadway as plaintiff.
61. Defendants, including Mendes, Hodos, and Skulsky, would not have forcible removed plaintiff from the vehicle and fabricated false accounts of plaintiff operating the vehicle, if plaintiff was not a young African- American male with dreadlocks.
62. As a direct and proximate result of the acts of Mendes, Hodos, and Skulsky, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

**FIRST CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
New York State Law

63. The above paragraphs are here incorporated by reference as though fully set forth.
64. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

- 65. Plaintiff was conscious of his confinement.
- 66. Plaintiff did not consent to his confinement.
- 67. Plaintiff's arrest and false imprisonment was not otherwise privileged.
- 68. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
- 69. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 70. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SECOND CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
42 U.S.C. § 1983 Against Individual Defendants

- 71. The above paragraphs are here incorporated by reference as though fully set forth.
- 72. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
- 73. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
- 74. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
- 75. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 76. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**THIRD CAUSE OF ACTION**

Assault and Battery Under  
New York State Law

77. The above paragraphs are here incorporated by reference as though fully set forth.
78. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
79. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
80. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
81. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
82. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FOURTH CAUSE OF ACTION**

Excessive Force Under  
42 U.S.C. § 1983 Against Individual Defendants

83. The above paragraphs are here incorporated by reference as though fully set forth.
84. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
85. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
86. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
87. By reason of the above, the amount of damages sought on this cause of action exceeds the

jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FIFTH CAUSE OF ACTION**

Malicious Prosecution Under

New York State Law

- 88. The above paragraphs are here incorporated by reference as though fully set forth.
- 89. Defendants initiated the prosecution against Plaintiff.
- 90. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
- 91. Defendants acted with malice.
- 92. The prosecution was terminated in Plaintiff's favor when he was acquitted of all criminal charges after trial.
- 93. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
- 94. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
- 95. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SIXTH CAUSE OF ACTION**

Malicious Prosecution Under

42 U.S.C. § 1983 Against Individual Defendants

- 96. The above paragraphs are here incorporated by reference as though fully set forth.
- 97. Defendants, acting under color of state law, initiated the prosecution against Plaintiff.
- 98. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

99. Defendants acted with malice.
100. The prosecution was terminated in Plaintiff's favor when all charges were dismissed and sealed.
101. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
103. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SEVENTH CAUSE OF ACTION**

Malicious Abuse of Process Under  
New York State Law

104. The above paragraphs are here incorporated by reference as though fully set forth.
105. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
106. Defendants had no excuse or justification to forcibly detain, arrest or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
107. Defendants intended to inflict substantial harm upon Plaintiff.
108. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
109. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
111. By reason of the above, the amount of damages sought on this cause of action exceeds the



jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**EIGHTH CAUSE OF ACTION**

Malicious Abuse of Process Under  
42 U.S.C. § 1983 Against Individual Defendants

- 112. The above paragraphs are here incorporated by reference as though fully set forth.
- 113. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
- 114. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
- 115. Defendants intended to inflict substantial harm upon Plaintiff.
- 116. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
- 117. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
- 118. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 119. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**NINTH CAUSE OF ACTION**

Failure to Intervene Under  
New York State Law

- 120. The above paragraphs are here incorporated by reference as though fully set forth.

121. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
122. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
123. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
124. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**TENTH CAUSE OF ACTION**

Failure to Intervene Under  
42 U.S.C. § 1983 Against Individual Defendants

125. The above paragraphs are here incorporated by reference as though fully set forth.
126. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
127. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
128. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
129. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
130. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**ELEVENTH CAUSE OF ACTION**

Deprivation of Rights and Denial of Equal Protection of the Laws under  
New York State law

131. The above paragraphs are here incorporated by reference as though fully set forth.
132. Plaintiff, as a black male, is a member of a racial minority and protected class.
133. Defendants discriminated against Plaintiff on the basis of his race, national origin, ethnicity, religion or sex.
134. Defendants also engaged in the selective treatment of Plaintiff, in comparison to members of unprotected classes, who were similarly situated.
135. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, religion, intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.
136. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.
137. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.
138. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
139. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
140. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
141. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**TWELFTH CAUSE OF ACTION**

Deprivation of Rights and Denial of Equal Protection of the Laws under  
42 U.S.C. §§ 1983 and 1981 Against Individual Defendants

142. The above paragraphs are here incorporated by reference as though fully set forth.
143. Plaintiff, as a black male, is a member of a racial minority and protected class.
144. Defendants discriminated against Plaintiff on the basis of his race, national origin, ethnicity, religion or sex.
145. Defendants also engaged in the selective treated of Plaintiff in comparison to unprotected class members, who were similarly situated.
146. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, religion, intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.
147. Defendants applied facially neutral laws against Plaintiff in a racially or otherwise improperly discriminatory manner.
148. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.
149. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
150. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
151. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**THIRTEENTH CAUSE OF ACTION**

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under  
42 U.S.C. §§ 1985 and 1986 Against Individual Defendants

152. The above paragraphs are here incorporated by reference as though fully set forth.
153. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of the equal protection of the laws, or of the privileges and immunities under the laws.
154. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.
155. Plaintiff sustained injuries to his person or was deprived of rights or privileges of citizens of the United States.
156. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.
157. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.
158. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
159. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FOURTEENTH CAUSE OF ACTION**

Negligent Hiring, Retention, Training and Supervision Under  
New York State Law

160. The above paragraphs are here incorporated by reference as though fully set forth.
161. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
162. Defendant City breached that duty of care.

163. Defendant City placed defendants in a position where they could inflict foreseeable harm.
164. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
165. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
166. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
167. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FIFTEENTH CAUSE OF ACTION**

Municipal "*Monell*" Liability Under  
42 U.S.C. § 1983 Against Defendant City

168. The above paragraphs are here incorporated by reference as though fully set forth.
169. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of her Constitutional right to free from illegal searches and seizures.
170. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
171. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.
172. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City

and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

173. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.
174. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
175. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**WHEREFORE**, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;



- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
  - m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
  - n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
  - o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
  - p) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
  - q) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action.

Dated: Bayside, New York  
June 28, 2019



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SIM & DEPAOLA, LLP  
By: Samuel C. DePaola, Esq.  
*Attorneys for Plaintiff*  
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**ATTORNEY VERIFICATION**

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York  
June 28, 2019

  
\_\_\_\_\_  
**SAMUEL C. DEPAOLA, ESQ.**

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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ADAM LAMBERT,

Plaintiff,

-against-

CITY OF NEW YORK, Individually and in their official capacities as New York City Police  
Officers, JONATHON MENDES, EVAN HODOS, CHRISTOPHER SKULSKY, and JOHN or  
JANE DOE 1-10,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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**SIM & DEPAOLA, LLP**  
By: Samuel C. DePaola, Esq.  
*Attorneys for Plaintiff(s)*  
42-40 Bell Boulevard, Suite 201  
Bayside, New York 11361  
Tel.: (718) 281-0400

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To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

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Service of a copy of the within is hereby admitted.  
Dated

Attorney(s) for